



CHAPTER clxxxv.

An Act to confirm a Provisional Order of the Local Government Board relating to Bath. [30th July 1900.] A.D. 1900.

WHEREAS the Local Government Board have made the Provisional Order set forth in the schedule hereto under the provisions of the Housing of the Working Classes Act 1890: 53 & 54 Vict. c. 70.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Local Government Board's Provisional Order Confirmation (Housing of Working Classes) Act 1900. Short title.

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Order Confirmation (Housing of Working Classes) Act, 1900.

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SCHEDULE.

*Bath
Order.*

CITY OF BATH.

*Provisional Order for confirming an Improvement Scheme under
Part I. of the Housing of the Working Classes Act 1890.*

To the Mayor Aldermen and Citizens of the City of Bath ; —

And to all others whom it may concern.

53 & 54 Vict.
c. 70.

WHEREAS it is enacted by Section 4 of the Housing of the Working Classes Act 1890 (herein-after referred to as "the Act") that where an official representation for the purposes of Part I. of the Act is made in accordance with the provisions of the Act to the Local Authority that within a certain area in the district of such authority either—

- (a) any houses courts or alleys are unfit for human habitation or
- (b) the narrowness closeness and bad arrangement or the bad condition of the streets and houses or groups of houses within such area or the want of light air ventilation or proper conveniences or any other sanitary defects or one or more of such causes are dangerous or injurious to the health of the inhabitants either of the buildings in the said area or of the neighbouring buildings

and that the evils connected with such houses courts or alleys and the sanitary defects in such area cannot be effectually remedied otherwise than by an improvement scheme for the re-arrangement and reconstruction of the streets and houses within such area or of some of such streets or houses the Local Authority shall take such representation into their consideration and if satisfied of the truth thereof and of the sufficiency of their resources shall pass a resolution to the effect that such area is an unhealthy area and that an improvement scheme ought to be made in respect of such area and after passing such resolution shall forthwith proceed to make a scheme for the improvement of such area ;

And whereas the City of Bath is an Urban Sanitary District of which the Mayor Aldermen and Citizens acting by the council are the Urban Sanitary Authority and the Local Authority under the Act and are herein-after referred to as "the Local Authority" ;

And whereas an official representation for the purposes of Part I. of the Act has been made to the Local Authority in accordance with the provisions of the Act to the effect that the courts in connexion with Lampard's Buildings known as Turner's Buildings Viner's Court Edward's Place St. John's Place Spencer's Court Lampard's Place and Woolcott's Court and also Nos. 28 29 and 30 Lampard's Buildings with the south side of Mount Pleasant all in the Parish of Walcot in the said City of Bath constituted an unhealthy area within the meaning of the Act ;

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And whereas the Local Authority having taken such official representation into consideration and being satisfied of the truth thereof and of the sufficiency of their resources have passed a resolution that the area described in the said official representation is an unhealthy area and that an improvement scheme ought to be made in respect of such area ;

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And whereas the Local Authority after passing such resolution as aforesaid made a Scheme (herein-after referred to as "the Scheme") for the improvement of the said area and for the purpose of making the Scheme efficient for sanitary purposes have included in the Scheme certain neighbouring lands which are edged with blue on the deposited plan herein-after referred to ;

And whereas the Scheme was accompanied by plans and by particulars and estimates and the Scheme particulars and estimates are as follow :—

" CITY OF BATH.

" HOUSING OF THE WORKING CLASSES ACT 1890.

" PART I.

"IMPROVEMENT SCHEME of the MAYOR ALDERMEN and CITIZENS of the CITY of BATH
" (being the Urban Sanitary Authority for the District of the said City) in respect
" of the area known as Lampard's Buildings in the Parish of Walcot within the
" City of Bath and shown on the Deposited Map.

" WHEREAS William Henry Symons the Medical Officer of Health for the District
" of the City of Bath by a report in writing dated the 14th day of October 1898 made a
" representation to the Mayor Aldermen and Citizens of the City of Bath being and
" acting as the Urban Sanitary Authority in and for the District of the said City
" (herein-after referred to as ' the Corporation ') under the provisions of Section 5 of the
" above-named Act upon the representation of 12 persons liable to be rated to the local
" rate to the effect that the courts in Lampard's Buildings known as Turner's Buildings
" Viner's Court Edward's Place St. John's Place Spencer's Court Lampard's Place
" and Woolcott's Court Nos. 28 29 and 30 Lampard's Buildings and the south side of
" Mount Pleasant all in the Parish of Walcot in the said City of Bath constituted an
" unhealthy area within the meaning of Section 4 of the said Act.

" And whereas the Corporation took such representation into consideration and at a
" meeting held on the 21st day of March 1899 adopted a resolution declaring that the
" area referred to by the said Medical Officer of Health in his said representation was
" an unhealthy area and that an improvement scheme ought to be made in respect of
" such area.

" And whereas the Corporation has proceeded to prepare a scheme for the improve-
" ment of such area and for the purpose of making the same efficient for sanitary
" purposes has made provision for widening existing approaches to the area.

" And whereas the following properties adjoining the said area will be required for
" the purpose of widening the approaches thereto namely No. 2 Julian Road Morford
" Brewery and paint shop below with rights of way to the ' Rose ' Inn and Nos. 13 14
" 15 and 16 Morford Street the yard in rear of No. 1 Belvedere Place and garden

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A.D. 1900. “ of No. 18 Lansdown Road Nos. 24 25 26 and 27 Lampard's Buildings and two
 “ cottages in rear of No. 24.

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“ 1. The lands and premises within the said unhealthy area and required for the
 “ improvement of the approaches thereto shown on the map deposited herewith
 “ (referred to as ‘the Deposited Map’) thereon coloured pink and blue shall be taken
 “ and purchased compulsorily under the provisions of the said Act in that behalf.

“ 2. It is necessary for making this scheme efficient for sanitary purposes and to
 “ provide for widening the existing approaches to the unhealthy area and for opening
 “ out the same for the purposes of ventilation and health that three additional plots of
 “ land should also be taken and purchased compulsorily under the provisions of the
 “ said Act in that behalf namely one containing .1754 acre or thereabouts situate on
 “ the west side of Lampard's Buildings comprising Morford Brewery and No. 2 Julian
 “ Road another containing .0308 acre or thereabouts also situate on the west side of
 “ Lampard's Buildings aforesaid comprising a yard belonging to No. 1 Belvedere
 “ Place and a yard belonging to No. 18 Lansdown Road and a third containing
 “ .1148 acre or thereabouts situate on the east side of Lampard's Buildings aforesaid
 “ and comprising Nos. 24 25 26 and 27 in Lampard's Buildings and No. 25 Ballance
 “ Street each of such plots is shown on the plan herein-before referred to and is thereon
 “ coloured blue.

“ 3. That all the dwelling-houses buildings and messuages now standing within the
 “ limits of the said area and also all dwelling-houses buildings and premises standing
 “ on the said three plots of land above referred to shall be pulled down and the sites
 “ thereof cleared.

“ 4. That the whole of the said area including the 3 plots of land herein-before
 “ described be utilised in part for laying out improved streets and approaches and in
 “ part for the erection of dwelling-houses for the working classes with suitable
 “ curtilages air spaces and conveniences.

“ F. H. MOGER

Clerk.

“ Dated 16th November 1899.

“ PARTICULARS.

“ Acreage of the area affected	-	-	0.8202 acre.
“ Number of persons of the working class			
“ who will be displaced	-	-	189 persons.
“ Number for whom dwelling accommo-			
“ dation is to be provided	-	-	176 persons.
“ Place at which dwelling accommodation			
“ is to be provided	-	-	On the sites of the unhealthy dwellings
			“ within the area and upon the site of
			“ Nos. 24 25 26 and 27 Lampard's
			“ Buildings No. 25 Ballance Street
			“ Morford Brewery yard belonging to
			“ No. 1 Belvedere Place adjoining the
			“ said area.

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“ ESTIMATE OF EXPENSE.

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	“ £	s.	d.	<i>Bath Order.</i>
“ I estimate the value of the lands buildings and interests based upon				
“ the fair market value at the time of my valuation being made				
“ due regard being had to the nature and condition of the				
“ property and the probable duration of the buildings at the				
“ sum of - - - - -	5690	0	0	
“ For the improvement of the approaches to the site - - -	2153	0	0	
“ Cost of erection of dwellings for persons of the working class				
“ displaced - - - - -	5820	0	0	
	13663	0	0	

“ CHAS. R. FORTUNE
City Surveyor.”

“ Bath 16th November 1899.

And whereas the Local Authority have after the publication of advertisements and service of notices in accordance with the Act presented a petition accompanied by a copy of the Scheme to the Local Government Board praying that an Order may be made confirming the Scheme and have deposited with that Board duplicates of the plans which accompanied the Scheme the plan referred to in the Scheme as “the deposited Map” being herein-after referred to as “the deposited Plan”;

And whereas on consideration of the petition and on proof of the publication of the proper advertisements and of the service of the notices as aforesaid the Local Government Board directed a local inquiry to be held in accordance with and for the purposes mentioned in the Act and such inquiry has been held and report has been made of the result of such inquiry to the Local Government Board in accordance with Section 19 of the Act:

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Act do subject to the provisions of the Act and subject as herein-after provided hereby—

Art. I. Confirm the Scheme subject to the modifications herein-after mentioned.

Art. II. Declare that the limits of the areas comprised in the Scheme are the lands edged with pink and blue on the deposited Plan.

Art. III. Authorise the Scheme to be carried into execution subject to the following conditions and modifications viz., —

- (1.) The areas edged with pink on the deposited Plan shall be taken to represent the whole of the unhealthy area.
- (2.) All the lands within the limits of the areas comprised in the Scheme may be taken compulsorily.
- (3.) The Scheme so far as it relates to the laying out of streets approaches and communications and to other matters not provided for in this Order shall be carried out in such manner as may be approved by Us.
- (4.) Suitable dwellings according to plans to be approved by Us shall be erected within the limits of the areas comprised in the Scheme for the accommodation of one hundred and seventy-six persons of the working class.

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(5.) The Local Authority shall not without Our sanction sell or let any of the lands within the limits of the areas comprised in the Scheme for any purpose other than the erection of suitable dwellings for the accommodation of persons of the working class.

(6.)—(a.) Not more than fifteen buildings occupied by persons of the working class on the lands within the limits of the areas comprised in the Scheme shall be demolished by the Local Authority until dwelling-houses suitable for the accommodation of not less than sixty persons of the working class shall have been erected and completed fit for occupation on the lands cleared after such demolition of buildings by the Local Authority as is permissible in pursuance of this paragraph.

(b.) When such accommodation has been provided as aforesaid the Local Authority may demolish one half of the remaining buildings on the lands within the limits of the areas comprised in the Scheme but the remaining half of such buildings shall not be demolished until additional dwelling-houses suitable for the accommodation of not less than forty persons of the working class shall have been erected and completed fit for occupation on the lands cleared after such demolition of buildings by the Local Authority as is permissible in pursuance of this paragraph.

(c.) All lands on which any dwellings shall have been erected or provided in pursuance of this Scheme shall for a period of twenty-five years from the passing of the Act of Parliament confirming this Order be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this provision.

Art. IV. Approve of the Local Authority themselves undertaking the rebuilding of the houses on the lands within the limits of the areas comprised in the Scheme.

Art. V. Approve of the Local Authority incurring such additional expenditure beyond that included in the Estimate accompanying the Scheme as may be necessary for the purpose of carrying the Scheme into execution subject to the conditions and modifications in this Order including expenditure incurred in the erection by the Local Authority themselves of such dwellings as aforesaid and We approve of the Local Authority borrowing with Our sanction the amount of such additional expenditure.

Art. VI. Declare that this Order may be cited as the Bath (Housing of Working Classes) Order 1900.

Given under the Seal of Office of the Local Government Board this
Fifteenth day of May One thousand nine hundred.

(L.S.)

HENRY CHAPLIN President.
S. B. PROVIS Secretary.

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